

DAY v. GRIFFIN

19CV43812

PLAINTIFF'S MOTION TO COMPEL DISCOVERY RESPONSES

This is a breach of contract action involving a joint venture to cultivate and sell marijuana. Before the Court are discovery motions by plaintiff seeking responses to Special Interrogatories and a Request for Production of Documents. No opposition has been filed.

On 10/15/21, plaintiff served on defense counsel, via electronic mail, Special Interrogatory No. 32. Defendant did not serve any response.

On 03/17/22, plaintiff served on defendant, via electronic mail, Request for Production of Documents Nos. 1-12. Defendant did not serve any response.

On 06/01/22, counsel for plaintiff emailed defense counsel to inquire about the overdue responses to the RPD. Defense counsel did not respond.

On 07/11/22, plaintiff filed and served the pending motion. Although the motion involves both the Special Interrogatory and the RPDs, thus requiring the tender of two filing fees per Govt. Code §70617, defendant has not responded to the motion (going so far as to mention his own discovery goals in the recent CMC statement, but failing to acknowledge these pending motions).

This Court would like to believe that the silence is explainable, but for present purposes all this Court has is a prima facie display of a discovery abuse. The motion to compel a substantive, verified, objection-free response to the Special Interrogatory and the RPDs is GRANTED. Defendant is ordered to answer the special interrogatory and provide a response, including all responsive documents in his care, custody, or control, verified, without objection, within 20 days. Moreover, pursuant to CCP §2023.030(a) and CRC 3.1348(a) (given the absence of opposition), defendant is ordered to reimburse plaintiff \$510 (representing 1.5 hours at this community's going rate of \$300 per hour plus filing fee) within the same 20 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling, and to serve defense counsel both electronically and by certified mail, return receipt (to avoid any suggestion that email has failed defense counsel).

CALLISON v. ORTIZ

20CV45077

PLAINTIFF'S MOTIONS TO COMPEL DISCOVERY

This case involves an allegedly broken promise to use the equity from the sale of real property to reduce an existing judgment. In 2017, plaintiff Dan Callison secured a stipulated judgment against co-defendant Dan Riordan for \$965,000.00. In 2019, defendants Rose Ortiz and Dan Riordan executed an Assignment of Equity in favor of plaintiff, pledging "in reduction of that certain Judgment all right title and interest in any and all equity which they may hold in 2235 Skunk Ranch Road, Murphys." In 2020, defendant Ortiz transferred by way of grant deed the subject property, and reportedly failed to tender over to plaintiff any equity from that transaction – which plaintiff estimates to be in the range of \$200,000.00.

Before the Court this day are eight (8) discovery motions, including Form Interrogatories, Special Interrogatories, Request for Production of Documents, and Requests for Admission to each defendant. All eight (8) sets of discovery were mail-served to defense counsel 03/04/22. Defendants did not respond. On 04/19/22, counsel for plaintiff inquired of the status of responses, to no avail.

Since defense counsel has appeared at case management conferences, the silence in the face of clear discovery obligations seems unusual. This Court would like to believe that the silence is explainable, but for present purposes all this Court has is a prima facie display of a discovery abuse. The motion to compel a substantive, verified, objection-free response to the Form Interrogatories, Special Interrogatories, and Request for Production of Documents is GRANTED. Defendant is ordered to comply within 20 days. With regard to the RFAs, so long as plaintiff's counsel confirms that substantially-compliant responses have not been received prior to the hearing, the request to have those matters deemed admitted is GRANTED. Pursuant to CCP §2023.030(a) and CRC 3.1348(a) (giving to the absence of opposition), defendants are each ordered to reimburse plaintiff \$1,000 (representing 0.5 hrs for each motion, plus filing fee) within the same 20 days.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling, and to serve defense counsel by personal delivery to the office.